

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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ALVIN KNOWLES II,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE SERGEANT
STEVEN OWENS-Shield # 02144, POLICE OFFICER
RUBEN ROMERO-Shield # 17953 and JOHN DOES-
Police Officers as yet unidentified,

Defendants.

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Index #

Date of filing:

Plaintiff designates Kings
County as the place of trial

SUMMONS

Basis of the venue is Locus of
Occurrence

Locus of Occurrence at
325 E. 21st Street
Brooklyn, New York 11226

County of Kings

TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE SERGEANT STEVEN OWENS-
Shield # 02144,
Tax ID # 933135
c/o New York City Police Department- 70th
Precinct
154 Lawrence Avenue
Brooklyn, New York 11230

POLICE OFFICER RUBEN ROMERO-Shield #
17953
Tax ID # 968104
c/o New York City Police Department- 70th
Precinct
154 Lawrence Avenue
Brooklyn, New York 11230

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
26 Court Street, Suite 1200
Brooklyn, New York 11242
(718)522-1020

Dated: Brooklyn, New York
March 13, 2024

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
ALVIN KNOWLES II,

Index No.:

Plaintiff,

COMPLAINT

-against-

THE CITY OF NEW YORK, POLICE SERGEANT
STEVEN OWENS-Shield # 02144, POLICE OFFICER
RUBEN ROMERO-Shield # 17953 and JOHN DOES-
Police Officers as yet unidentified,Defendants.
-----X

Plaintiff, by his attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the defendants herein, upon information and belief, respectfully shows to this Court, and alleges as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF ALVIN KNOWLES II**

1. That at all times hereinafter mentioned, the plaintiff was and still is a resident of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on June 30, 2023, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff was held on December 21, 2023.

6. That on April 12, 2023, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE SERGEANT STEVEN OWENS-Shield # 02144, POLICE OFFICER RUBEN ROMERO-Shield # 17953 and JOHN DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

7. That on April 12, 2023, and at all times hereinafter mentioned and upon information and belief, the plaintiff, ALVIN KNOWLES II, was lawfully present at or about the premises known as 325 E. 21st Street, in the County of Kings, City and State of New York.

8. That on April 12, 2023, and at all times hereinafter mentioned and upon information and belief, while at the aforementioned location, the plaintiff, ALVIN KNOWLES II, was approached and was assaulted and battered by the defendants, POLICE SERGEANT STEVEN OWENS-Shield # 02144, POLICE OFFICER RUBEN ROMERO-Shield # 17953 and JOHN DOES-Police Officers as yet unidentified. The assault and battery consisted of being grabbed, struck multiple times about his face and body, had knees pressed into his back and chest and thereafter forcefully placed in handcuffs. While in handcuffs and under police custody, the plaintiff was dragged into a police vehicle and was taken to the 70th Precinct where he was placed in a holding cell. The plaintiff was then transported to Maimonides Medical Center, for medical treatment due to his injuries while under police custody. The plaintiff was released from the hospital without being charged with a crime at approximately 9:30 PM.

9. That on April 12, 2023, and at all times hereinafter mentioned and upon information and belief, plaintiff, ALVIN KNOWLES II, was assaulted and battered by defendants, POLICE SERGEANT STEVEN OWENS-Shield # 02144, POLICE OFFICER RUBEN ROMERO-Shield # 17953 and JOHN DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

10. That on April 12, 2023, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

11. That on April 12, 2023, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE SERGEANT STEVEN OWENS-Shield # 02144, POLICE OFFICER RUBEN ROMERO-Shield # 17953 and JOHN DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, ALVIN KNOWLES II, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

12. That on April 12, 2023, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

13. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

14. By the reason of the foregoing, the plaintiff, ALVIN KNOWLES II, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF ALVIN KNOWLES II**

15. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "14" inclusive with the same force and effect as if more fully set forth at length herein.

16. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE SERGEANT STEVEN OWENS-Shield # 02144, POLICE OFFICER

RUBEN ROMERO-Shield # 17953 and JOHN DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, ALVIN KNOWLES II.

17. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE SERGEANT STEVEN OWENS-Shield # 02144, POLICE OFFICER RUBEN ROMERO-Shield # 17953 and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

18. By the reason of the foregoing, the plaintiff, ALVIN KNOWLES II, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE
ARREST ON BEHALF OF ALVIN KNOWLES II**

19. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "18" inclusive with the same force and effect as if more fully set forth at length herein.

20. That on April 12, 2023, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE SERGEANT STEVEN OWENS-Shield # 02144, POLICE OFFICER RUBEN ROMERO-Shield # 17953 and JOHN DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, ALVIN KNOWLES II.

21. That on April 12, 2023, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

22. That as a result of the aforesaid false arrest and confinement, the plaintiff, ALVIN KNOWLES II, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

23. By the reason of the foregoing, the plaintiff, ALVIN KNOWLES II, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF ALVIN KNOWLES II**

24. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "23" inclusive with the same force and effect as if more fully set forth at length herein.

25. That on April 12, 2023, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE SERGEANT STEVEN OWENS-Shield # 02144, POLICE OFFICER RUBEN ROMERO-Shield # 17953 and JOHN DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

26. That the defendants, POLICE SERGEANT STEVEN OWENS-Shield # 02144, POLICE OFFICER RUBEN ROMERO-Shield # 17953 and JOHN DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

27. By the reason of the foregoing, the plaintiff, ALVIN KNOWLES II, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLECTION OF EMOTIONAL DISTRESS
ON BEHALF OF ALVIN KNOWLES II**

28. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "27" inclusive with the same force and effect as if more fully set forth at length herein.

29. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE SERGEANT STEVEN OWENS-Shield # 02144, POLICE OFFICER RUBEN ROMERO-Shield # 17953 and JOHN DOES-Police Officers as yet unidentified, acted

intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

30. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, ALVIN KNOWLES II.

31. That as a result of said intentional and negligent acts, the plaintiff, ALVIN KNOWLES II, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

32. By reason of the foregoing, the plaintiff, ALVIN KNOWLES II, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF ALVIN KNOWLES II**

33. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "32" inclusive with the same force and effect as if more fully set forth at length herein.

34. The defendant, THE CITY OF NEW YORK, through policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, ALVIN KNOWLES II.

35. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE SERGEANT STEVEN OWENS-Shield # 02144, POLICE OFFICER RUBEN ROMERO-Shield # 17953 and JOHN DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

36. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

37. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to JOHN DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

38. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE SERGEANT STEVEN OWENS-Shield # 02144, POLICE OFFICER RUBEN ROMERO-Shield # 17953 and JOHN DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

39. As a direct and proximate result of this unlawful conduct, the plaintiff, ALVIN KNOWLES II, sustained the damages hereinbefore alleged.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF ALVIN KNOWLES II**

40. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "39" inclusive with the same force and effect as if more fully set forth at length herein.

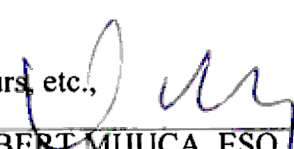
41. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

42. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE SERGEANT STEVEN OWENS-Shield # 02144, POLICE OFFICER RUBEN ROMERO-Shield # 17953 and JOHN DOES-Police Officers as yet unidentified, herein-above alleged.

43. By the reason of the foregoing, the plaintiff, ALVIN KNOWLES II, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, ALVIN KNOWLES II, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, ALVIN KNOWLES II, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, ALVIN KNOWLES II, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, plaintiff, ALVIN KNOWLES II, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, ALVIN KNOWLES II, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, ALVIN KNOWLES II, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, ALVIN KNOWLES II, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
March 13, 2024

Yours, etc., 

ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiff
ALVIN KNOWLES II
26 Court Street Suite 1200
Brooklyn, New York 11242
(718) 522-1020
File No.: 23CC04-02

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

ALVIN KNOWLES II, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing **COMPLAINT** and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.

Sworn to before me this 20
of March 2024



ALVIN KNOWLES II


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-2027